

2026:PHHC:086386



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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-32351-2026
Decided On: 01.06.2026**

AJAY KUMAR AND OTHERS**....PETITIONER(S)****VERSUS****STATE OF PUNJAB AND ANOTHER****....RESPONDENT(S)****CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL****Present:** Mr. Baljinder Singh, Advocate for the petitioners**SANDEEP MOUDGIL, J. (ORAL)**

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1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioners in FIR No. 93 dated 24.04.2026 under Sections 420, 120-B of IPC, 1860 (Corresponding Section 318 (4), 61(2) of BNS, 2023) registered at Police Station City Rupnagar, District Rupnagar (P-1).

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioners submits that they have been falsely implicated in the present case. He contends that, even as per the allegations contained in the FIR, the petitioners have been arrayed merely as proforma parties and no specific role has been attributed to them. He further points out that a similar position is reflected in the civil suit instituted by the

complainant, wherein the petitioners have also been impleaded without any substantive allegations against them. Counsel further submits that the dispute essentially pertains to possession and ownership of property, which is founded upon documentary evidence and is predominantly civil in nature. According to him, the complainant has sought to give a criminal colour to a purely civil dispute, despite the absence of any direct or specific allegations against the petitioners constituting offences under Sections 420 and 120-B IPC. On these grounds, he prays for the grant of anticipatory bail to the petitioners.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Siddharth Sandhu, AAG Punjab, accepts notice on behalf of the respondent–State, who would not controvert the above-said fact.

4. Analysis

Having heard learned counsel for the parties and upon perusal of the record, this Court finds that the primary allegations in the FIR pertain to a dispute regarding possession and ownership of immovable property. The controversy appears to be substantially founded on documentary evidence and is already the subject matter of civil proceedings instituted by the complainant. Significantly, learned State counsel does not dispute the contention that the petitioners have been impleaded in the civil suit as proforma parties and that no specific or overt act has been attributed to them either in the civil proceedings or in the FIR so as to prima facie establish their active involvement in the commission of the offences alleged. The petitioners have undertaken in para 8 of the petition to join and cooperate in the investigation, and there is no material

to suggest that they are likely to abscond or tamper with evidence. Therefore, this Court has no reason to decline the present petition.

5. Relief:-

Hence, the petitioners are directed to be released on anticipatory bail subject to their joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to their satisfaction. The petitioners shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

- (i) a condition that the person shall make himself available for interrogation by a police officer as and when required;*
- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;*
- (iii) a condition that the person shall not leave India without the previous permission of the Court;*
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’*

However, it is made clear that in case the petitioners do not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.
Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

01.06.2026

NainaRajput

Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No